

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No:

-----X
DAVELL MARTHONE,

Plaintiffs),

-against-

Plaintiff designates
New York County
the place of trial

The basis of venue is
plaintiffs' residence

**CITY OF NEW YORK and NEW YORK CITY POLICE
OFFICER CARL ACHILLE (Tax ID 945455),**

Defendant(s).

SUMMONS

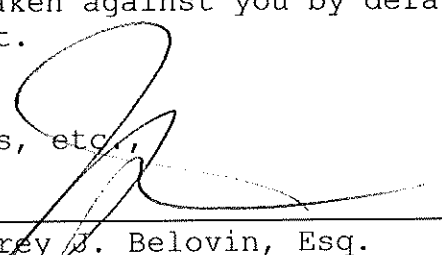
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Plaintiff resides at:
1738 Lexington Avenue
New York, NY 10029

To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
January 30, 2014

Yours, etc.,



Jeffrey J. Belovin, Esq.
BELOVIN & FRANZBLAU, LLP
Attorneys for Plaintiff(s)
Office & P. O. Address
2311 White Plains Road
Bronx, New York 10467-8106
(718) 655-2900

Defendant(s) Address(es):

CITY OF NEW YORK

100 Church Street

New York, New York 10007

NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)

23rd Precinct

164 East 102nd Street

New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DAVELL MARTHONE,

Plaintiff(s),

VERIFIED COMPLAINT

Index No:

-against-

**CITY OF NEW YORK and NEW YORK CITY POLICE
OFFICER CARL ACHILLE (Tax ID 945455),**

Defendant(s).
-----X

Plaintiff, by and through his attorneys, **BELOVIN & FRANZBLAU, LLP**, as and for a verified complaint, respectfully allege as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That all the times hereinafter mentioned, plaintiffs were and still are residents of the City and State of New York, County of New York.

2. At all the times herein, the defendant, **CITY OF NEW YORK**, was, and still is a duly licensed Municipal Corporation authorized to transact business in the City of New York, County of New York.

3. Upon information and belief, the defendant, **CITY OF NEW YORK**, employed **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, who was herein a duly employed and acting New York City Police Officer of the City of New York, County of New York, State of New York and upon information and belief, the defendant, **NEW**

YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455), was and still is, at all times herein mentioned, residents of the State of New York, City of New York, County of New York.

4. Upon information and belief, that all times herein, the defendant, **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, was and still is an employee of The City of New York Police Department as a Police Officer and/or another ranking Officer, and was at all times herein acting within the furtherance and scope of his employment with **THE CITY OF NEW YORK**. The defendant, **CITY OF NEW YORK**, is liable and responsible for all of those acts committed by the defendant, **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, pursuant to the doctrine of respondeat superior. **THE CITY OF NEW YORK** expressly and implicitly condoned all of the actions of **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, set forth herein and hereinafter.

5. Upon information and belief, **THE CITY OF NEW YORK** at all times herein, condoned all of the acts of the defendant, **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, as herein and hereinafter set forth.

6. Upon information and belief, each and all of the acts of the defendant alleged herein were done by defendant, not as an individual, but under the color and pretense of the statutes,

ordinances, regulations, customs and usages of the State of New York, City of New York and the County of New York, and under the authority of the office as Police Officers for New York City.

7. Prior to the commencement of this action, on the 17th day of April, 2013, a Notice of Claim was duly served herein on the defendant. Thereafter, on the 27th day of June, 2013, an Amended Notice of Claim was duly served herein on the defendant. Thereafter, on the 21st day of August, 2013, a Second Amended Notice of Claim was duly served hereon on the th defendant. That to date, the defendant, City of New York, has failed and refused to conduct a 50-H hearing pursuant to the General Municipal Law. That more than thirty days have expired since the filing of a Notice of Claims and the defendant has failed and neglected to adjust the claim. This action is timely brought.

8. On or about the 15th day of May, 2013, the defendant, **THE CITY OF NEW YORK**, by their employee, the defendant, **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, falsely and maliciously accused the plaintiff, **DAVELL MARTHONE**, of crimes and violations.

9. Said charges were bought against the plaintiff, **DAVELL MARTHONE**, with malice.

10. There was no probable cause for bringing said charges against the plaintiff and said charges were false and defendants intended to maliciously prosecute plaintiff.

11. As a result of the above malicious prosecution, plaintiff was held in custody for twenty four (24) hours, forced to make several Court appearances to defend himself and suffered great fear, anxiety and emotional pain and suffering while he waited for several months until the charges were eventually dismissed.

12. On January 25, 2013, all charges were dismissed against the plaintiff.

13. The above actions of the defendants, **THE CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, constitute malicious prosecution by the defendants, all against the plaintiff, **DAVELL MARTHONE**.

14. By reason of the foregoing **MALICIOUS PROSECUTION** the plaintiff, **DAVELL MARTHONE**, sustained personal, physical, mental and emotional injuries, loss of esteem, shock, humiliation, embarrassment, loss of liberty, loss of time, loss of enjoyment of life and is entitled to punitive damages against defendant, **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, and was otherwise damaged, all in a sum exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

15. Plaintiffs repeat, reiterate and reallege each and every allegation as set forth in paragraphs "1" through "14".

16. During all the times herein, the individual defendant acted under the color of law and statutes, ordinances, regulations, customs and usages of the State of New York, County of New York, City of New York.

17. The defendant engaged in illegal conduct herein mentioned to the injury of the plaintiff and deprived plaintiff of the rights, privileges and immunities secured to the plaintiff by the Constitution of the United States and Federal Laws of the United States. The defendant in maliciously prosecuting plaintiff deprived the plaintiff of his constitutional rights and annuities secured by the United States Constitution including the right to be free of false and malicious accusations, unnecessary and unlawful detention, assault, battery and all other rights secured by the Constitution of the United States and 42 United States Code Section 1983. The defendant acted knowingly and purposely with the specific intention to deprive the plaintiff of his aforementioned rights.

18. Upon information and belief, the action and conduct described herein by **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, and the New York City Police Department, constituted

and demonstrated an official unconstitutional policy and custom of abuse and misconduct by the New York City Police Department and **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, and/or constituted a continuing pattern of abuse and misconduct by the New York City Police Department and **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, and said misconduct and official unconstitutional policy caused plaintiff to be subjected to and deprived his constitutional rights.

19. As a direct and proximate result of the aforesaid, the plaintiff suffered physical and mental injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, and the plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts.

20. Plaintiff hereby demands reasonable attorneys fees pursuant to 42 United States Code Section 1983 and other Civil Rights Statutes.

AS AND FOR A THIRD CAUSE OF ACTION

21. Plaintiffs repeat, reiterate and reallege each and every allegation numbered "1" through "20", above as if fully set forth herein.

22. On or about May 15, 2012, the defendant, **POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, approached the plaintiff, detained him and began to beat the plaintiff. During this altercation plaintiff was probed, shoved, dragged, thrown to the ground, cuffed and verbally and physically assaulted, battered and abused plaintiff with the intent and purpose of harming, injuring, humiliating and embarrassing plaintiff in the presence of the public generally, and particularly, the people present at the scene.

23. After searching plaintiff's person, as above described, which search did not reveal any incriminatory or dangerous articles and after beating plaintiff, defendants placed the plaintiff in handcuffs and compelled the plaintiff to accompany them and detained the plaintiff.

24. Plaintiff was held and imprisoned and detained, said imprisonment and confinement was all without probable cause or justification and was all precipitated by the unlawful and improper charges and actions of the defendant and said actions of defendant was done intentionally and with malice.

25. All criminal charges and violations pressed against plaintiff in connection with, or in support of the arrest, search, seizure, and imprisonment to which plaintiff was subjected as set forth herein were unjustified and were dismissed, and said

confinement was, at all times, against the will of the plaintiff. That plaintiff was aware of said imprisonment and confinement and did not consent thereto. The confinement and imprisonment was not privileged.

26. Said confinement and imprisonment was without probable cause, was improper and without justification and the plaintiff, **DAVELL MARTHONE's** movements were restricted. This confinement, imprisonment and restriction of the plaintiff's movement was against his will and plaintiff was aware of said confinement, restriction and imprisonment.

27. By the reason of the aforesaid **FALSE IMPRISONMENT** of the plaintiff, **DAVELL MARTHONE**, by the defendant, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of enjoyment of life, and is entitled to punitive damages, against the defendants, and was otherwise injured for which plaintiff seeks compensatory and punitive damages in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH OF ACTION

28. Plaintiffs repeat, reiterate and reallege each and every allegation number "1" through "27" above, as if fully set forth herein.

29. On or about May 15, 2012 in the City and State of New York, County of New York, the defendant, **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, did falsely arrest the plaintiff.

30. At all times herein, the defendant, did assert proper legal authority to detain and arrest the plaintiff, and the plaintiff reasonably believed that the defendants did have the power to hold him against his will.

31. Said arrest was without probable cause, improper and without justification, and the plaintiff, **DAVELL MARTHONE's**, movement was restricted and confined.

32. The aforesaid arrest and restriction of plaintiff's movements was against his will and plaintiff was aware of said arrest and restrictions and confinement against his will.

33. Said arrest was improper, unlawful and without proper justification and without probable cause.

34. At all times herein, the aforesaid false arrest by the defendant was made with malice and the defendant did intend to falsely arrest the plaintiff.

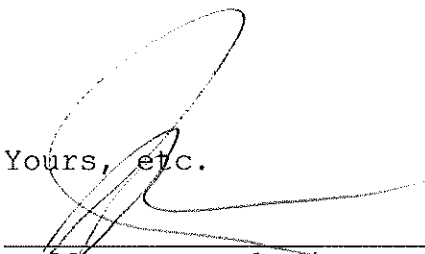
35. By reason of the **FALSE ARREST** of the plaintiff, **DAVELL MARTHONE**, by the defendant, **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, the plaintiff sustained physical, mental

and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life and is entitled to punitive damages against **NEW YORK CITY POLICE OFFICER CARL ACHILLE (Tax ID 945455)**, and was otherwise damaged for which he seeks compensatory and punitive damages in an amount exceeding the jurisdictional limits of all lower Courts.

WHEREFORE, plaintiff demands judgement on each cause of action against the defendants jointly and severally, in an amount exceeding the jurisdictional limits of all lower Courts, plus punitive damages against defendants, in the amount exceeding the jurisdictional limits of all lower Courts together with costs, interest and disbursements of this action, and together with such other and further relief as to this Court may seem just and proper.

Dated: Bronx, New York
 January 30, 2014

Yours, etc.



Jeffrey J. Belovin, Esq.
BELOVIN & FRANZBLAU, LLP
Attorneys for Plaintiff(s)
2311 White Plains Road
Bronx, New York 10467-8106
(718) 655-2900

VERIFICATION

State of New York)

ss:

County of Bronx)

Davell Marthone, being duly sworn, deposes and says: That (s)he is the plaintiff in these proceedings; that (s)he has read and knows the contents of the above **VERIFIED COMPLAINT** and that the same is true to her/his own knowledge except as to the matters therein stated to be alleged upon information and belief, as to those matters, (s)he believes them to be true.

Davell Marthone
Davell Marthone

Sworn to before me on
January 30, 2014


Notary Public

LAURA PANISSIDI
Notary Public, State of New York
No. 01PA5017882
Qualified in BRONX County
Commission Expires September 13, 2017

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK
=====

DAVELL MARTHONE, by his mother and natural guardian, LESLIE
MARTHONE and LESLIE MARTHONE, Individually,

Plaintiffs),

-against-

CITY OF NEW YORK and NEW YORK CITY POLICE OFFICER CARL ACHILLE
(Tax ID 945455),

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

Belovin & Franzblau, L.L.P.
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2311 White Plains Road
Bronx, NY 10467
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TO: